

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 13, 2026, AT 8:30 A.M.

7. S-CV-0055151 MARVEL, XONYA v. MEDCARE MEDICAL CENTER

Plaintiff's Motion to Compel Defendant MedCare Medical Center, LLC's Responses to Plaintiff's First Set of Form Interrogatories—Employment Law

Plaintiff's unopposed motion to compel answers to form interrogatories, set one is granted. (Code Civ. Proc., § 2030.290.) Defendant MedCare Medical Center, LLC shall provide plaintiff verified answers, without objection, to the form interrogatories within 20 days of service of the signed order after hearing.

Sanctions are denied because the motion was not opposed. (Code Civ. Proc., § 2030.290, subd. (c).) However, repeated conduct of failing to comply with discovery obligations may lead the court to find an abuse of the discovery process and award sanctions on that basis. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, overruled on other grounds in *Garcia v. McCutchen* (1997) 16 Cal.4th 469, 478, fn. 4.)

Plaintiff's Motion to Compel Defendant MedCare Medical Center, LLC's Responses to Plaintiff's First Set of Special Interrogatories

Plaintiff's unopposed motion to compel answers to special interrogatories, set one is granted. (Code Civ. Proc., § 2030.290.) Defendant MedCare Medical Center, LLC shall provide plaintiff verified answers, without objection, to the form interrogatories within 20 days of service of the signed order after hearing.

Sanctions are denied because the motion was not opposed. (Code Civ. Proc., § 2030.290, subd. (c).) However, repeated conduct of failing to comply with discovery obligations may lead the court to find an abuse of the discovery process and award sanctions on that basis. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, overruled on other grounds in *Garcia v. McCutchen* (1997) 16 Cal.4th 469, 478, fn. 4.)

Plaintiff's Motion to Compel Defendant MedCare Medical Center, LLC's Responses to Plaintiff's First Set of Requests for Production

Plaintiff's unopposed motion to compel responses to requests for production of documents, set one is granted. (Code Civ. Proc., § 2031.300.) Defendant MedCare Medical Center, LLC shall provide plaintiff verified responses and responsive documents, without objections, to request for production of documents, set one, within 20 days of service of the signed order after hearing.

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Sanctions are denied because the motion was not opposed. (Code of Civil Procedure sections 2031.300, subd. (c).) However, repeated conduct of failing to comply with discovery obligations may lead the court to find an abuse of the discovery process and award sanctions on that basis. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, overruled on other grounds in *Garcia v. McCutchen* (1997) 16 Cal.4th 469, 478, fn. 4.)

Plaintiff's Motion for Order Deeming Plaintiff's Requests for Admission as Admitted as to Defendant MedCare Medical Center, LLC

Plaintiff's unopposed motion deeming truth of matters admitted is granted. (Code Civ. Proc. § 2033.280.) Plaintiff's request for admissions, set one, as to defendant MedCare Medical Center, LLC, are deemed admitted.

Sanctions in the amount of \$495.70 are imposed upon defendant MedCare Medical Center, LLC. The award is based upon a reasonable hourly rate of \$400 for 1 hours along with the \$95.70 filing fee. (Code Civ. Proc. § 2033.280, subd. (c))

8. S-CV-0055741 WIEAND, JAMIE v. MAZDA MOTOR OF AMERICA

Plaintiffs' Motion to Determine the Amount of Reasonable Attorney's Fees, Costs, and Expenses to be Paid by Defendant

Preliminary Matters

Defendant's objections are overruled in their entirety.

Ruling on Motion

Plaintiffs move for the court to award them \$25,084.11 in attorney's fees and \$834.11 in costs as the alleged prevailing party.

Civil Code section 1794, subdivision (a) allows a buyer of a vehicle to bring an action for recovery of their damages and other legal and equitable relief for any failure to comply with obligations arising under the chapter. (Civ. Code § 1794, subd. (a).) If the buyer successfully prevails in their action, he or she may recover "attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (*Id.* at subd. (d).)